Casebook

Topic 2: Trespass to Persons and Goods

Trespass to Persons

***Rixon v Star City Pty Ltd* [2001] NSWCA 265 (New South Wales Court of Appeal)**

Facts:

The appellant, Brian Rixon, had been made the subject of an exclusion order under s 79 of the *Casino Control Act* 1992 (NSW). On 25 November 1996, while he was standing at a roulette table in the casino, an employee of the respondent (Mr Sheldon) approached him and placed a hand on his shoulder to engage his attention before informing him that, as an excluded person, he was required to follow him to an interview room. The trial judge (Balla ADCJ) found that Mr Sheldon placed his hand on Rixon's shoulder without using any force or causing injury, and rejected Rixon's evidence that he had been "grabbed" and "spun around." Rixon sued in assault, battery, wrongful arrest and false imprisonment, and appealed after his claims failed at trial.

Decision:

The appeal was dismissed. On the battery claim, the Court of Appeal held that the touching was not a battery — not because it lacked anger or hostility, but because the contact was for the purpose of engaging Rixon's attention and fell within the category of physical contact generally acceptable in the ordinary conduct of daily life. Significantly, the Court accepted that anger or hostility is *not* a necessary element of battery; the correct test is whether the touching exceeds what is generally acceptable in everyday life.

Extracts from Reasons:

SHELLER JA (Priestley and Heydon JJA agreeing):

49 Mr Rixon's evidence about the alleged battery was specific. He described the approach of the SHC employee, by implication Mr Sheldon, as follows:

"I heard somebody grab me in the shoulder ..... and spun me around".

In cross-examination he said:

"Q. Your account of the events Mr Rixon is that whilst you were standing at the roulette table someone approached you, put their hand on your shoulder and I think you said turned you around and then asked were you Brian Rixon or something to that effect, is that your evidence? A. That's what happened.

Q. I suggest to you that no-one at that point touched you on the shoulder at all and that all that was simply done was you were approached and the question asked, are you Brian Rixon? A. That's incorrect."

50 Apparently the questioner's phrase "put their hand on your shoulder" and Mr Rixon's assent to the question led the trial Judge to "accept the evidence of the plaintiff in relation to the manner he was approached by Sasha Sheldon, that is that he placed his hand on the plaintiff's shoulder." Placing the hand on the shoulder is not grabbing the shoulder, that is to say, seizing it suddenly. Her Honour must have rejected the evidence of grabbing and spinning around. Having made this finding, the trial Judge rejected Mr Rixon's case in battery on the basis that the touching lacked "the requisite anger or hostile attitude".

51 The placing of the hand on the shoulder could be a battery. As Holt CJ said in *Cole v Turner* (1704) 6 Mod 149; 87 ER 907 "the least touching of another in anger is a battery". On the other hand, as the Chief Justice said, "if two or more meet in a narrow passage, and without any violence or design of harm, the one touches the other gently, it will be no battery".

52 However the absence of anger or hostile attitude by the person touching another is not a satisfactory basis for concluding that the touching was not a battery. In *In re F (Mental Patient: Sterilisation)* [1990] 2 AC 1 at 73 Lord Goff of Chieveley said:

"In the old days it used to be said that, for a touching of another's person to amount to a battery, it had to be a touching 'in anger' (see Cole v Turner *per Holt CJ); and it has recently been said that the touching must be 'hostile' to have that effect (see* Wilson v Pringle *[1987] QB 237, 253). I respectfully doubt whether that is correct. A prank that gets out of hand; an over-friendly slap on the back; surgical treatment by a surgeon who mistakenly thinks that the patient has consented to it - all these things may transcend the bounds of lawfulness, without being characterised as hostile. Indeed the suggested qualification is difficult to reconcile with the principle that any touching of another's body is, in the absence of lawful excuse, capable of amounting to a battery and a trespass."*

53 In *Collins v Wilcock* [1984] 1 WLR 1172 Lord Goff (then Robert Goff LJ) sitting in the Divisional Court, at 1177-8 referred to the fundamental principle, plain and incontestable, that every person's body is inviolate, and that any touching of another person, however slight may amount to a battery. His Lordship referred to *Cole v Turner* and to *Blackstone's Commentaries*, 17th ed (1830) Vol 3, 120:

"the law cannot draw the line between different degrees of violence, and therefore totally prohibits the first and lowest stage of it; every man's person being sacred, and no other having a right to meddle with it, in any the slightest manner."

His Lordship continued:

"But so widely drawn a principle must inevitably be subject to exceptions. For example, children may be subjected to reasonable punishment; people may be subjected to the lawful exercise of the power of arrest; and reasonable force may be used in self-defence or for the prevention of crime. But, apart from these special instances where the control or constraint is lawful, a broader exception has been created to allow for the exigencies of everyday life. Generally speaking, consent is a defence to battery; and most of the physical contacts of ordinary life are not actionable because they are impliedly consented to by all who move in society and so expose themselves to the risk of bodily contact. So nobody can complain of the jostling which is inevitable from his presence in, for example, a supermarket, an underground station or a busy street; nor can a person who attends a party complain if his hand is seized in friendship, or even if his back is, within reason, slapped: see Tuberville v Savage (1669) 1 Mod 3. Although such cases are regarded as examples of implied consent, it is more common nowadays to treat them as falling within a general exception embracing all physical contact which is generally acceptable in the ordinary conduct of daily life. We observe that, although in the past it has sometimes been stated that a battery is only committed where the action is 'angry, revengeful, rude, or insolent' (see Hawkins, Pleas of the Crown, 8th ed (1824), vol 1, c15, section 2), we think that nowadays it is more realistic, and indeed more accurate, to state the broad underlying principle, subject to the broad exception.

Among such forms of conduct, long held to be acceptable, is touching a person for the purpose of engaging his attention, though of course using no greater degree of physical contact than is reasonably necessary in the circumstances for that purpose. So, for example, it was held by the Court of Common Pleas in 1807 that a touch by a constable's staff on the shoulder of a man who had climbed on a gentleman's railing to gain a better view of a mad ox, the touch being only to engage the man's attention, did not amount to a battery: see Wiffin v Kincard*(1807) 2 Box & Pul 471; for another example, see* Coward v Baddeley *(1859) 4 H & N 478. But a distinction is drawn between a touch to draw a man's attention, which is generally acceptable, and a physical restraint, which is not. So we find Parke B observing in* Rawlings v Till *(1837) 3 M & W 28, 29, with reference to* Wiffin v Kincard*, that 'There the touch was merely to engage [a man's] attention, not to put a restraint upon his person'."*

54 This distinction is explained in *Clerk & Lindsell on Torts*, 17th ed, 12-06 where the question is posed whether the physical contact imposed on the plaintiff was in excess of that "generally acceptable in everyday life". It is pointed out in a footnote that acceptable conduct must be considered in the context of the incident in dispute.

"For an adult to jump on another and snatch her shoulder bag is clearly unacceptable. Between 13-year-old schoolboys it might perhaps be seen as 'as unremarkable as shaking hands'."

55 No error has been demonstrated which would entitle this Court to interfere with the trial Judge's finding that the touching lacked "the requisite anger or hostile attitude." More accurately, and consistently with her Honour's findings, it could not be said that the conduct of Mr Sheldon in the circumstances found and clearly for the purpose of engaging Mr Rixon's attention, was not generally acceptable in the ordinary conduct of daily life.

Assault

56 A traditional definition of assault is "an overt act indicating an immediate intention to commit a battery, coupled with the capacity of carrying that intention into effect"; see *Clerk & Lindsell* 12-12. The irrelevance of the intention to carry the battery into effect is demonstrated by the act of presenting an unloaded firearm in such circumstances that if it had been loaded its discharge would have been likely to cause injury. Such an act is an assault unless the person at whom it is pointed knows that it is empty; see generally *Clerk & Lindsell* 12-13.

57 According to *Fleming, The Law of Torts*, 9th ed, at 31-32:

"Assault consists in intentionally creating in another person an apprehension of imminent harmful or offensive contact. .... there may be an assault without battery if the threat to inflict unlawful force is not in fact carried out. .... Since the gist of assault lies in the apprehension *of impending contact, the effect on the victim's mind created by the threat is the crux, not whether the defendant actually had the intention or the means to follow it up. The intent required for the tort of assault is the desire to arouse apprehension of physical contact, not necessarily to inflict actual harm."*

58 Proof of assault requires proof of an intention to create in another person an apprehension of imminent harmful or offensive contact; see, for example, *Hall v Fonceca* [1983] WAR 309. If the assault lies in creating an apprehension of impending contact, proof of the assault does not require proof of an intention to follow it up or carry it through. The trial Judge rejected the case in assault by finding "that the actions of the defendant's employee lacked `the requisite intention in relation to assault'." By this her Honour must have meant the intention to create in Mr Rixon an apprehension of imminent harmful or offensive contact. Having rejected Mr Rixon's account of being grabbed or spun round, her Honour's finding that Mr Sheldon placed his hand on Mr Rixon's shoulder without using any degree of force and said "Are you Brian Rixon?" led her to conclude that Mr Sheldon had no intention of creating in Mr Rixon an apprehension of imminent harmful or offensive conduct.

59 In my opinion, the evidence left it open to her Honour to find that the necessary intention to create in Mr Rixon an apprehension of imminent harmful or offensive contact was lacking. The appeal against the trial Judge's decision that neither battery nor assault was made out accordingly fails.

Trespass to Goods

Penfolds Wines Pty Ltd v Elliott **(1946) 74 CLR 204 (High Court of Australia)**

Facts:

Penfolds Wines manufactured and sold wine in bottles that were embossed with the company's name and a statement that the bottle remained the company's property; customers purchased the wine only and not the bottles. The respondent, Elliott, ran a business and received Penfolds' bottles from his brother. Elliott used Penfolds' bottles to sell wine. Penfolds sued Elliott in trespass and conversion and sought an injunction to restrain Elliott from using its bottles.

Decision:

The claim in trespass to goods failed because Penfolds did not have title to sue: trespass protects possession, and Penfolds was not in possession of the bottles at the time of the interference. There was no infringement of the possession of anyone — at the relevant time Elliott was in possession of the bottles, having been left them by his brother (as bailee).

On conversion, a majority (Latham CJ, Starke, McTiernan and Williams JJ) held that Elliott's conduct amounted to conversion. Penfolds had a right to immediate possession of the bottles, even though it lacked actual possession (which is why the trespass claim failed). Elliott intentionally filled the bottles with his own wine, and this dealing was inconsistent with the dominion and right of property of the owner, Penfolds — an assertion of dominion over the goods contrary to the rights of the person entitled to possession.

The case is significant for distinguishing trespass to goods from conversion: trespass turns on interference with actual possession (and thus title to sue), whereas conversion requires a serious interference amounting to an assertion of dominion inconsistent with the rights of the person entitled to possession, and can be maintained by a person with the right to immediate possession.

Extracts from Reasons:

In relation to trespass to goods (and the element of possession)

DIXON J (STARKE, McTIERNAN and WILLIAMS JJ agreed with DIXON J that claim for trespass failed):

[224]... The case against the respondent, therefore, amounts to no more than this. He supplied a few customers with wine which he poured into bottles brought by them and left with him for the purpose. Some of these bottles bore brands showing that they belonged to the sellers of wine, or of other liquor who retained ownership of the bottles. Among such bottles, on at least one occasion, were bottles of the appellants, that is, the two left by the respondent's brother. The bottles were returned to those who brought them, no confusion in the identity of the bottles being proved. On the occasion of the visit of the inspector and the customs officer, the respondent sur- rendered to them, as if in obedience to the law, two such bottles in exchange for the value of the wine.

What wrong to possession or property on the part of the respon- dent do these facts disclose ? I know of none. It cannot be trespass because there is, on the part of the respondent, no infringement upon the possession of any one...

In relation to conversion

LATHAM CJ:

[218]... The defendant in the present case handled and used the plaintiff's bottles for the purpose of exercising what he regarded as his right to use them for containing any liquid that he chose to put into them and to keep them for that purpose until he delivered them, with their contents, to his customers-his brother or other persons who brought branded bottles to him: See Pollock on Torts, 14th ed. (1939), p. 286 The grievance [in conversion] is the unauthorized assumption of the powers [219] of the true owner. Actually dealing with another's goods as owner, for however short a time and however limited a purpose, is therefore conversion.' The defendant dealt with the bottles on the basis that he was entitled to hold them when brought to him by his brother or other customers and to use them for the purposes of his trade. In Burroughes v. Bayne 1 , quoted by Sir William Holdsworth in History of English Law, vol. 7, p. 415, Channell B. said :- Every asportation is not a conversion; and therefore it seems to me that every detention cannot be a conversion. If it were, the mere removal of a chattel, independently of any claim over it in favour of the party himself, or anyone else whatever, would be a conversion. The asportation of a chattel for the use of the defendant or third persons, amounts to a conversion, and for this reason, whatever act is done inconsistent with the dominion of the owner of a chattel, at all times and places over that chattel, is a conversion."

In the present case there was not, in my opinion, a mere removal of the bottles received from the defendant's brother independently of any claim over them in favour of the defendant or anyone else. There was a handling of the bottles, an actual user of them, for the purposes of the defendant's trade-for containing and disposing of the defendant's wine and for the use of the defendant's customer, his brother. Such dealing with the bottles, under a claim of right SO to deal with them (a claim in which the defendant still persists) was inconsistent with the dominion of the owner of the bottles and was a conversion.

Interesting note: Dixon J found the conduct did not amount to conversion, calling the use of bottles "temporary and harmless" and therefore not serious enough to reach the threshold required for conversion.